



United States Department of Justice
Civil Rights Division
civilrights.justice.gov

Thank you for submitting a report to the Civil Rights Division.

Report successfully submitted



Your record number is: 772131-VLS

Save report

What to expect

1 We review your report

Our specialists in the Civil Rights Division carefully read every report to identify civil rights violations, spot trends, and determine if we have authority to help with your report.

2 Our specialists determine the next step

We may decide to:
Open an investigation or take some other action within the legal authority of the Justice Department.
Collect more information before we can look into your report.
Recommend another government agency that can properly look into your report. If so, we'll let you know.

In some cases, we may determine that we don't have legal authority to handle your report and will recommend that you seek help from a private lawyer or local legal aid organization.

3 When possible, we will follow up with you

We do our best to let you know about the outcome of our review. However, we may not always be able to provide you with updates because:
We're actively working on an investigation or case related to your report.
We're receiving and actively reviewing many requests at the same time.

If we are able to respond, we will contact you using the contact information you provided in this report. Depending on the type of report, response times can vary. If you need to reach us about your report, please refer to your report number when contacting us. This is how we keep track of your submission.

What you can do next

1 Contact local legal aid organizations or a lawyer if you haven't already

Legal aid offices or members of lawyer associations in your state may be able to help you with your issue.
Legal Services Corporation (or Legal Aid Offices), to help you find a legal aid lawyer in your area visit www.lsc.gov/find-legal-aid

2 Get help immediately if you are in danger

If you reported an incident where you or someone else has experienced or is still experiencing physical harm or violence, or are in immediate danger, please call [911](tel:911) and contact the police.

Your submission

Contact

Contact information

Your name

Ashle Penn

Email address

ashlepenn.ap3@gmail.com

Phone number

+14242423374

Address

17548 NW Springville Rd Unit 9
-
Portland, Oregon 97229

Are you now or have ever been an active duty service member?

No

Primary concern

What is your primary reason for contacting the Civil Rights Division?

Something else happened

Location

Where did this happen?

Organization name

Oregon Department of Human Services

Address

500 Summer St NE,
E15
Salem, Oregon

Personal characteristics

Do you believe any of these personal characteristics influenced why you were treated this way?

Age
Disability (including temporary or recovered and including HIV and drug addiction)
Family, marital, or parental status
Race/color

Date

When did this happen?

9/6/2025

Personal description

In your own words, describe what happened

I am submitting this statement regarding an ongoing deprivation of my parental rights arising from removal and continued separation of my child without any communicated lawful basis supported by identifiable findings, and without disclosure of any judicial or evidentiary determination establishing unfitness, necessity, or statutory grounds for removal.

At the time of removal and throughout the approximately eight months since, I have not been provided with a written or articulated legal basis that identifies the specific statute, standard, or court finding authorizing the initial removal or justifying continued separation. No order or findings have been provided to me that establish parental unfitness or that set forth a constitutionally sufficient justification for the deprivation of custody. The information communicated to me at various stages has not been consistent with any verifiable, court-issued findings. The reasons provided for the removal have been stated in general or shifting terms, without citation to sworn evidence, judicial determinations, or a record capable of independent review. Despite repeated requests for clarification, I have not received documentation identifying the evidentiary basis relied upon or the authority under which the removal was executed and maintained.

Throughout this period, I have also been informed of allegations presented as justification for state action affecting my parental rights. Those allegations have not been accompanied by underlying evidence, affidavits, or judicial findings made available to me for challenge. I have not been provided a meaningful opportunity to contest the factual basis relied upon because the underlying record has not been disclosed as requested when i was denied access to all records. Not only has ODHS failed to serve me but they are preventing access to records that would allow me to be apprised of the reason for their involvement and have an opportunity to defend. The agency has not been able to substantiate my daughter's removal as it has not pointed to any conduct of mine that warranted her removal.

Recorded and written communications with agency personnel reflect that I consistently disputed the removal from the outset and requested identification of the lawful basis for continued separation. Those requests have not resulted in production of a clear evidentiary or legal foundation. Instead, the separation has continued without disclosure of findings sufficient to demonstrate compliance with due process requirements and the denial of records both from the court and the agency.

As of the present date, there remains no communicated judicial determination establishing parental unfitness, no identified order setting forth the grounds for removal, and no provided record explaining how the continued deprivation of custody satisfies constitutional or statutory standards. The absence of such disclosure has persisted for approximately eight months despite repeated inquiry.

I am requesting federal review of whether the removal and continued separation occurred and are being maintained without constitutionally adequate process, including failure to disclose the legal and evidentiary basis for state interference with the parent-child relationship.